

Ross on Crime

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Lies

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Lies

Mere denial of guilt is not a lie	[12.1500]
May show consciousness of guilt, or be corroboration	[12.1505]
Lie to prove guilt must be precisely identified	[12.1510]
Prosecutor's role on lies	[12.1515]
Does the evidence call for a direction	[12.1520]
Direction to a jury	[12.1525]
Expert evidence	[12.1530]
Twelve points about lies	[12.1535]
Lucas direction	[12.1540]
Last word	[12.1545]
Possible lies direction	[12.1550]

[12.1500] Mere denial of guilt is not a lie

In *R v Gionfriddo & Faure* (1989) 50 A Crim R 327 (Vic CCA) Crockett and O'Bryan JJ said (at 332–333):

[A] lie consisting of a bald denial of guilt made in or out of court (as is we suppose the case in every contested trial) which is only shown to be a lie by proof by the prosecution of the

crime charged axiomatically is not a lie that can assist in proof of guilt. For it to do so would be for the prosecution to lift itself by its own bootstraps.

In *R v Mercer* (1993) 67 A Crim R 91 (NSW CCA) Hunt CJ at CL said (at 98):

Where, however, the lies of the accused upon which the Crown relies are his denials of the complainant's evidence, those lies *cannot* be used in order to assist the tribunal of fact to determine whether the complainant's evidence is to be accepted.

[12.1505] May show consciousness of guilt, or be corroboration

In *Edwards v The Queen* (1993) 178 CLR 193; 68 A Crim R 349; 117 ALR 600 Deane, Dawson and Gaudron JJ said (at 210–211; 613; 362–363):

A lie can constitute an admission against interest only if it is concerned with some circumstance or event connected with the offence (ie it relates to a material issue) and if it was told by the accused in circumstances in which the explanation for the lie is that he knew that the truth would implicate him in the offence. Thus, in any case where a lie is relied upon to prove guilt, the lie should be precisely identified, as should the circumstances and events that are said to indicate that it constitutes an admission against interest. And the jury should be instructed that they may take the lie into account only if they are satisfied, having regard to those circumstances and events, that it reveals a knowledge of the offence or some aspect of it and that it was told because the accused knew that the truth of the matter about which he lied would implicate him in the offence, or, as was said in *Reg v Lucas (Ruth)*, because of “a realization of guilt and a fear of the truth”.

Moreover, the jury should be instructed that there may be reasons for the telling of a lie apart from the realization of guilt. A lie may be told out of panic, to escape an unjust accusation, to protect some other person or to avoid a consequence extraneous to the offence. The jury should be told that, if they accept that a reason of that kind is the explanation for the lie, they cannot regard it as an admission. It should be recognized that there is a risk that, if the jury are invited to consider a lie told by an accused, they will reason that he lied simply because he is guilty unless they are appropriately instructed with respect to these matters. And in many cases where there appears to be a departure from the truth it may not be possible to say that a deliberate lie has been told. The accused may be confused. He may not recollect something which, upon his memory being jolted in cross-examination, he subsequently does recollect.

If the telling of a lie by an accused is relied upon, not merely to strengthen the prosecution case, but as corroboration of some other evidence, the untruthfulness of the relevant statement must be established otherwise than through the evidence of the witness whose

evidence is to be corroborated. If a witness required to be corroborated is believed in preference to the accused and this alone establishes the lie on the part of the accused, reliance upon the lie for corroboration would amount to the witness corroborating himself. That is a contradiction in terms.

In *R v Ciantar* (2006) 16 VR 26; 167 A Crim R 504; 46 MVR 461 (Vic CA) the court said in a joint judgment (at 48; 527; 481 [69]):

[A]s the Court of Criminal Appeal said in *R v Perera*, and reiterated in *Woolley*, it is folly, if not impossible to attempt to formulate general propositions or rules which will govern the occasions on which lies or conduct give rise to an inference that the accused thereby displayed a consciousness of guilt. Everything depends on the circumstances of the particular case. (citations omitted)

An accused's denial of the complainant's evidence cannot be relied on by the prosecution as lies:

Barbaro v The Queen (1993) 32 NSWLR 619; 67 A Crim R 91 (CCA);

R v Mercer (1993) 67 A Crim R 91 (NSW CCA);

R v Zheng (1995) 83 A Crim R 572 (NSW CCA).

[12.1510] Lie to prove guilt must be precisely identified

In *Zoneff v The Queen* (2000) 200 CLR 234; 112 A Crim R 114; 172 ALR 1, Gleeson CJ, Gaudron, Gummow and Callinan JJ said (at 244; 7; 121 [17]):

[I]f there is a risk of confusion or doubt as to the way in which the prosecution puts its case, the trial judge should inquire of the prosecution whether it contends that lies may constitute evidence of consciousness of guilt and, if so, he or she should require identification of the lie or lies in issue and the basis on which they are said to be capable of implicating the accused in the commission of the offence charged.

In *R v Khoosal* (1994) 71 A Crim R 127 (Vic CCA), the court said in a joint judgment (at 132):

Defence counsel did not require the Crown to define and seek to justify any alleged lies. He ought to have done so. It is implicit from what was said in *Edwards* (1993) 178 CLR 193; 117 ALR 600; 68 A Crim R 349 that ultimately the judge bears the responsibility for defining and analysing any alleged lies for the jury. However, the primary responsibility must be on the prosecutor to tell the judge what alleged lies the Crown seeks to rely on to

prove guilt, and to define those alleged lies, and to seek to justify them in the light of the principles laid down in *Edwards* (1993) 178 CLR 193; 117 ALR 600; 68 A Crim R 349. Defence counsel should insist that that be done. If tactical considerations might preclude that, then the trial judge must require it.

See also

Edwards v The Queen (1993) 178 CLR 193; 68 A Crim R 349; 117 ALR 600 where Dawson, Deane and Gaudron JJ said (at 210–211; 613; 362):

[I]n any case where a lie is relied upon to prove guilt, the lie should be precisely identified, as should the circumstances and events that are said to indicate that it constitutes an admission against interest.

Applied:

R v Martin (2002) 134 A Crim R 568 at 574–575 [17]–[19] (Qld CA);

R v Ray (2003) 57 NSWLR 616

Houghton v The Queen (2004) 28 WAR 399; 144 A Crim R 343 at 424–425; 368–369 [127]–[132] (WA CCA).

Penza v The Queen [2013] NSWCCA 21.

[12.1515] Prosecutor's role on lies

A prosecutor must make it clear whether evidence of lies goes to credibility or to consciousness of guilt: *R v Baring* (2005) 92 SASR 117; 155 A Crim R 326 (CCA); *R v Shiers* (2003) 7 VR 174 (CA); *R v Kumar* (2006) 165 A Crim R 48 at [42] (Vic CA).

A prosecutor who wants to show that a lie of the accused showed a consciousness of guilt must do so at the outset.

In *R v Howard* (2005) 156 A Crim R 343 (Vic CA) Chernov JA, with whom the others agreed, said (at 351 [25]):

When the prosecutor alleged in his final address that the applicant lied and that the lie amounted to consciousness of guilt, the applicant had no realistic opportunity to meet that claim.

and later (at 351 [26]):

Fairness demands that if the Crown intends to rely on consciousness of guilt it should make this known to the court at the outset of the trial. (The appeal was allowed.)

It is not proper for a prosecutor to cross-examine an accused about any motive a prosecution witness might have to lie:

Palmer v The Queen (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16;

R v Foley [2000] 1 Qd R 290; (1998) 105 A Crim R 1 (CA).

If the issue of a witness's motive to lie arises in a trial, a prosecutor can make submissions on that issue in the final address:

R v PLK [1999] 3 VR 567; (1999) 108 A Crim R 414 at [59]–[61] (CA);

R v Geary [2003] 1 Qd R 64; (2002) 128 A Crim R 17 at [25]–[29] (CA).

[12.1520] Does the evidence call for a direction

There are times when a direction on lies is not appropriate, and times when it is.

In *R v Ciantar* (2006) 16 VR 26; 167 A Crim R 504; 46 MVR 461 (Vic CA) there was prosecution evidence of lies and flight. The court said in a joint judgment (at 48–49; 527–528; 481 [72]):

[I]f an innocent explanation of post-offence conduct is so inherently likely that a jury could not properly regard the conduct as evidence of guilt, or if the post-offence conduct is intractably neutral, the judge should refuse to leave the conduct to the jury as evidence capable of demonstrating consciousness of guilt. But where the judge is satisfied that the post-offence conduct, when taken in conjunction with the circumstances and events so identified is capable of demonstrating such a consciousness of guilt, the post offence conduct should be left to the jury to determine whether it has that effect. Similarly, where evidence of consciousness of guilt, which although by itself equally consistent with consciousness of guilt of an included offence or another count on the presentment or another offence disclosed by the evidence, is capable in conjunction with other evidence of sustaining an inference of consciousness of guilt of the charged offence, it must be left to the jury to determine whether it demonstrates consciousness of guilt of the charged offence.

In *R v Mitchell* (2007) 174 A Crim R 52 (CA) the prosecutor in the final address did not refer to lies. The trial judge directed on lies. Wrongly, said the court. Appeal allowed. Williams JA (at

[22]–[23]) referred to other cases where a warning had been given to prosecutors not to rely on lies as a matter of course. The cases were:

R v Brennan [1999] 2 Qd R 529; (1998) 101 A Crim R 214 (CA) per McPherson JA at 530; 215;

Approved: *R v Chevathen* (2001) 122 A Crim R 441 at 446 (Qld CA).

[12.1525] Direction to a jury

In *Broadhurst v The Queen* [1964] AC 441; [1964] 1 All ER 111 (PC) Lord Devlin said (at 457; 119–120):

It is very important that a jury should be carefully directed upon the effect of a conclusion, if they reach it, that the accused is lying. There is a natural tendency for a jury to think that, if an accused is lying, it must be because he is guilty, and accordingly to convict him without more ado. It is the duty of the judge to make it clear to them that this is not so. Save in one respect, a case in which an accused gives untruthful evidence is no different from one in which he gives no evidence at all. In either case the burden remains upon the prosecution to prove the guilt of the accused. But if upon the proved facts two inferences may be drawn about the accused's conduct or state of mind, his untruthfulness is a factor which the jury can take into account as strengthening the inference of guilt. What strength it adds depends, of course, on all the circumstances and especially on whether there are reasons other than guilt that might account for untruthfulness.

His Lordship said, in the next paragraph, that that was:

[T]he sort of direction which it is at least desirable to give to a jury.

Approved:

Edwards v The Queen (1993) 178 CLR 193; 68 A Crim R 349; 117 ALR 600.

Applied:

R v Miletic [1997] 1 VR 593 at 607 (CA).

In *Zoneff v The Queen* (2000) 200 CLR 234; 112 A Crim R 114; 172 ALR 1 Gleeson CJ, Gaudron, Gummow and Callinan JJ said (at 244; 7 [16]):

As a general rule, however, an Edwards-type direction should only be given if the prosecution contends that a lie is evidence of guilt, in the sense that it was told because, in the language of Deane, Dawson and Gaudron in *Edwards* (73), “the accused knew that the

truth ... would implicate him in [*the commission of*] the offence” and if, in fact, the lie in question is capable of bearing that character. (The words in italics are ours, and for the sake of clarity, should be included in the statement of principle.)

Other cases

Nestorov v The Queen (2002) 137 A Crim R 310 (WA CCA);

Benedetto v The Queen [2003] 1 WLR 1545; [2003] 2 Cr App R 390 at [50]–[52] (PC);

R v Ambrosi (2004) 144 A Crim R 67 (NSW CCA).

R v Duckworth [2016] QCA 30.

[12.1530] Expert evidence

In *R v Whitbread* (1995) 78 A Crim R 452 (Vic CCA) the judge had excluded at trial a psychologist's evidence that statements claimed by the prosecution to have been lies could have been the result of a state of stress. The appeal was allowed.

[12.1535] Twelve points about lies

In *R v Renzella* [1997] 2 VR 88; 88 A Crim R 65 (CA), the court in a joint judgment approved the judgment of Cooke J in *R v Toia* [1982] 1 NZLR 555 at 559 and then set forth the following twelve points (at 91–92):

1. Similar issues can arise in relation to conduct other than lies, such as flight or laying a false trail or bribery or attempted bribery of prosecution witnesses. See, for example, *R v Tadic and Gibb* (unreported, Full Court, 31 August 1993) at 32–33; *R v Edwards* (unreported, Court of Appeal, 20 December 1995) at p 7 and *R v Rhodes* (unreported, Court of Appeal, 20 December 1995) at 4–5. There can also be an implied admission that one intends to commit an offence or is in the course of committing it: see *R v Appleby* (unreported, Court of Appeal, 14 June 1996).
2. In most cases, as Cooke J said, lies go only to credit. As his Honour explained, “This is no more than a matter of common sense. They may help the jury to decide whether the evidence for the prosecution should be preferred to an account put forward by the accused.” A direction in conformity with *Edwards v R* (1993) 178 CLR 193 (“an *Edwards* direction”) is not necessary in such cases.
3. There is a natural tendency for a jury to think that, if an accused is lying, it must be because he is guilty. Although it was said by the Privy Council in *Broadhurst v R* [1964] AC 441 at 457 that it is the duty of the judge to make it clear to the jury that

- that is not so, there is no invariable rule of practice in Victoria to that effect where lies go only to credit. That was recently reaffirmed by Hayne JA in *Morgan's case* at 6.
4. The court as presently constituted heard argument on *Broadhurst's case* and the New Zealand authorities that have followed it in *R v Miletic* [1997] 1 VR 593. We observed, at 607, that it may be that the need for a warning of the kind referred to in those authorities is to be determined, on a case by case basis, by applying the general principle that a judge should give any direction that is necessary and practical, in the circumstances of the case, to avoid a perceptible risk of miscarriage of justice. *Morgan's case* is consistent with that observation.
 5. In *Edwards v R*, Deane, Dawson and Gaudron JJ also pointed out, at 208, that the telling of a lie will ordinarily do no more than affect the credit of the witness who tells it. That is equally true of a lie told by the accused.
 6. A lie told by the accused may nevertheless go further. As their Honours explained on the same page, it may amount to conduct which is inconsistent with innocence and thereby constitute “an implied admission of guilt”. In that way the telling of a lie may constitute evidence. It may even amount to corroboration if it is not necessary to rely on the evidence to be corroborated in order to establish the lie. See also at 209.
 7. Although the expression “consciousness of guilt” is often used, the critical distinction drawn in *Edwards v R* is between lies that go to credit and lies that amount to evidence because they constitute implied admissions. They constitute such admissions *because* they are told from a consciousness of guilt. Most lies are not of that kind and cannot give rise to admissions. See, eg, *R v Martin* (unreported, Court of Appeal, 20 December 1995) at 11. We have already referred to the passages in the joint judgment at 208 and 209. At 210–11, where the substance of an *Edwards* direction is set out, that is expressly done in the context of a lie constituting “an admission against interest”. See also *R v Tadic and Gibb* at 33–43.
 8. Accordingly it is a misdirection, in a case where lies go only to credit, to tell the jury that they form part of the Crown's circumstantial case or that the jury may regard them as corroboration or as affording “confirmation” or “support” for the testimony of a witness whose evidence stands in need of a scrutiny warning: see *Miletic's case* at 604–5. A lie cannot be part of a circumstantial case or corroboration or afford such confirmation or support unless it goes beyond credit and constitutes an admission against interest.
 9. An *Edwards* direction is required where the Crown invites the jury to use a lie told by the accused in any of those ways or simply as evincing a consciousness of guilt and the lie is of a kind which could found an admission. The requirement for such a direction is distinct from the standard of proof. The direction is required because the lie is relied on as an implied admission, whether or not it is an essential part of the Crown case.

10. The standard of proof, where a lie is relied on as an admission, is explained in *R v Edwards* (unreported, Court of Appeal, 20 December 1995) at 7–9. The lie and its character as an admission do not have to be proved beyond reasonable doubt unless the lie is the only evidence against the accused or an indispensable link in a chain of evidence necessary to prove guilt: see *Edwards v R* at 210 and *R v Taylor* (unreported, NSW Court of Criminal Appeal, 28 March 1995) at 19.
11. There are some cases where, although the Crown does not rely on lies as implied admissions, there is a danger that the jury may regard them in that light. Where that is so, the judge should direct the jury that the lies go only to credit and are not to be used as evidence or implied admissions of guilt. It is not for the judge to put the Crown case in a different way, and accordingly he or she should not follow the alternative course, apparently countenanced in *R v Goodway* (1995) 98 Cr App R 11 at 15 and 17; [1993] 4 All ER 894, of giving an *Edwards* direction in case the jury chooses to use the lies as doing more than merely reflecting on the credibility of the accused.
12. An *Edwards* direction is usually essential if the Crown invites the jury to treat lies by the accused as part of a circumstantial case, as corroboration, as confirmatory or supportive material or simply as evincing a consciousness of guilt, but an imperfect *Edwards* direction will not inexorably lead to a conviction's being quashed: see, for example, *R v Totivan and Dale* (unreported, Court of Appeal, 15 August 1996) at 12–13.

(This case is also reported in (1996) 88 A Crim R 65. It contains the above twelve points (at 68–70) but the authorities in support are expressed quite differently.)

[12.1540] Lucas direction

The expression Lucas direction comes from *R v Lucas (Ruth)* [1981] QB 720; [1981] 2 All ER 1008; (1981) 73 Cr App R 159 (CA). Lord Lane CJ giving the judgment of the court said (at 724; 1011; 162–163):

To be capable of amounting to corroboration the lie told out of court must first of all be deliberate. Secondly it must relate to a material issue. Thirdly the motive for the lie must be a realisation of guilt and a fear of the truth. The jury should in appropriate cases be reminded that people sometimes lie, for example, in an attempt to bolster up a just cause, or out of shame or out of a wish to conceal disgraceful behaviour from their family. Fourthly the statement must be clearly shown to be a lie by evidence other than that of the accomplice who is to be corroborated, that is to say by admission or by evidence from an independent witness.

This Lucas direction is referred to in all the main cases.

Other cases

R v Miletic [1997] 1 VR 593 at 604–605 (CA);

R v Benfield [1997] 2 VR 491; (1996) 89 A Crim R 118 at 500–503; 129–132 (CA);

R v Konstandopoulos [1998] 4 VR 381; (1997) 99 A Crim R 36 per Callaway JA (CA) at 387–391; 42–47 (with whom the others agreed);

R v Ellis (1998) 100 A Crim R 49 (SA CCA);

R v Coutts (1998) 126 CCC (3d) 545 (Ont CA);

T v The Queen (1999) 73 ALJR 460 (HC).

Articles

G Lyon and B Walmsley, “Consciousness of Guilt: The Use of Lies Told by the Accused” (1997) (Nov) LIJ 50–54.

A Palmer, “Guilt and the Consciousness of Guilt: The Use of Lies, Flight and other Guilty Behaviour in the Investigation and Prosecution of Crime” (1997) 21 MULR 95.

See also

Consciousness of guilt at [3.5900]; **Corroboration** at [3.7900]; **Edwards direction** at [5.100]; and **Zoneff direction** at [26.100].

[12.1545] Last word

In *R v Tripodi* [1961] VR 186 the Full Court said (at 193):

The lying statement must of course relate to incriminatory features of the crime; for if it were otherwise any lying statement by the accused might convict him of any crime in the calendar and such result has only to be stated to be at once rejected.

[12.1550] Possible lies direction

Where the prosecution relies on a lie told by an accused from a consciousness of guilt and therefore as being evidence of the commission of the offence because it is an admission, the lie must relate to a material issue.¹ The proof of the falsity must be proved independently.² A judge must require

the prosecutor to identify each such lie.³ Where the evidence of lies simply goes to the credibility, a *Zoneff* (2000) 200 CLR 234; 112 A Crim R 114; 172 ALR 1 direction⁴ may suffice. If the lie is only part of a circumstantial case no direction at all may be necessary.⁵ A lie used as corroboration must be the subject of a direction.⁶ An *Edwards* (1993) 178 CLR 193; 68 A Crim R 349; 117 ALR 600 direction⁷ must be given to avoid a perceptible risk of miscarriage⁸ such as a risk of a jury's misunderstanding the significance of a possible lie.⁹ If the lie is the only evidence or an indispensable link in the chain of proof, it must be proved beyond reasonable doubt.¹⁰ There is no formula. The following is a possible *Edwards* direction:

1. The prosecution case is that the accused told lies. They say that the lies are an admission that he committed the crime because the lies were told to cover up his guilt.
2. The lies the prosecution relies upon are these (each lie identified). If you are unable to find that the words spoken were lies, that is the end of it. Disregard them.
3. Each lie, says the prosecution was told in the following circumstances (identified).
4. Now I must give you the strongest legal warning about this evidence upon which the prosecution relies. I tell you this as a matter of law which you must accept.
5. The prosecution must prove beyond reasonable doubt that the words of the accused show a knowledge of the offence or some central aspect of it.
6. The prosecution must prove beyond reasonable doubt the ONLY reason for what was said that he realised his guilt and was afraid to tell the truth.
7. There are any number of innocent reasons why a person might not tell the truth, as well you know. Some of those reasons are panic, to escape an unjust accusation, to protect someone else, or because of a wish to conceal something nothing to do with this offence. The person might think that he is just painting the lily. He may be confused. He may simply be mistaken. He may have forgotten something. For a person to be charged with a criminal offence is a frightening thing. You must not reason that only a guilty person would not tell the truth.
8. If you think it is possible that the words were said for the reasons I have just spoken about then the prosecution cannot rely on them as an admission of the connection between the accused and the offence.

Footnotes

- 1 *Edwards v The Queen* (1993) 178 CLR 193; 68 A Crim R 349; 117 ALR 600 at 209 (CLR).
- 2 *Edwards v The Queen* (1993) 178 CLR 193; 68 A Crim R 349; 117 ALR 600 at 211 (CLR).
- 3 *R v Khoosal* (1994) 71 A Crim R 127 at 132.

- 4 *Zoneff v The Queen* (2000) 200 CLR 234; 112 A Crim R 114; 172 ALR 1 at 245
(CLR) (see **Zoneff Direction** at [26.100]).
- 5 *R v Ibrahim* (2003) 7 VR 141.
- 6 *R v Renzella* [1997] 2 VR 88; 88 A Crim R 65 at 92 (VR).
- 7 *Edwards v The Queen* (1993) 178 CLR 193; 68 A Crim R 349; 117 ALR 600
at 211.
- 8 *Carr v The Queen* (1988) 165 CLR 314; 35 A Crim R 387; 81 ALR 236 at 330
(CLR); *R v Konstandopoulos* [1998] 4 VR 381; (1997) 99 A Crim R 36 at 388
(VR).
- 9 *Dhanhoa v The Queen* (2003) 217 CLR 1; 139 A Crim R 41; [2003] HCA 40 at
[34]; *R v Nguyen* (2001) 118 A Crim R 479; *R v Chang* (2003) 7 VR 236; 140
A Crim R 573.
- 10 *R v Renzella* [1997] 2 VR 88; 88 A Crim R 65 at 92 (VR).